

HOUSE No. 2361

The Commonwealth of Massachusetts

PRESENTED BY:

James C. Arena-DeRosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to ensuring quality healthcare for children.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 2361

By Representative Arena-DeRosa of Holliston, a petition (accompanied by bill, House, No. 2361) of James C. Arena-DeRosa relative to the right to inspect medical records. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to ensuring quality healthcare for children.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 70E of chapter 111 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following paragraph:-

3 Any parent or guardian of a patient or resident of a facility under the age of 16 years of
4 age shall have to right inspect all medical records, including digital medical records, of the
5 patient or resident without consent except for medical records involving the following: (i) family
6 planning services pursuant to section 24E; (ii) gender-affirming health care services pursuant to
7 section 5F½ of chapter 112; (iii) substance use treatment pursuant to section 12E of said chapter
8 112; (iv) sexually transmitted disease treatment pursuant to section 12F of said chapter 112; (v)
9 treatment related to a pregnancy pursuant to said section 12F of said chapter 112; and (vi) mental
10 health treatment pursuant to section 10 of chapter 123. The department shall promulgate rules
11 and regulations to carry out the purpose of this paragraph.